

BEFORE THE
FEDERAL MARITIME COMMISSION

FMC DOCKET NO. 22-03

ONE BANANA NORTH AMERICA CORP.
Complainant,

v.

HAPAG-LLOYD AG AND HAPAG-LLOYD (AMERICA) LLC
Respondent.

**DECLARATION OF ALEX CORTES IN SUPPORT OF THREE RIVERS TRUCKING,
INC.'S MOTION TO QUASH**

I Alex Cortes declare, that I am an Operations Manager for Three Rivers Trucking, Inc. ("TRT"). I have personal knowledge as to the matters stated herein and if called upon as a witness, I could and would competently testify thereto. I make this declaration based upon my own recollections and after a review of the business records of TRT.

1. I make this declaration in support of TRT's motion to quash the subpoena issued by One Banana North America ("OBNA") directed to "3 Rivers Trucking". I was provided a copy of the draft subpoena by counsel for OBNA.

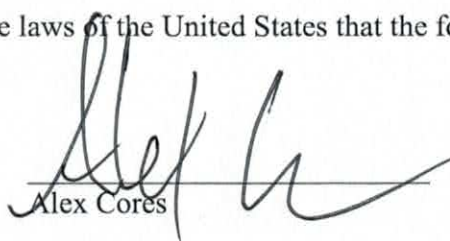
2. On or about October 26, 2021 TRT was contacted by Jose Morales from OBNA requesting TRT provide drayage services for 15 of OBNA's containers. After a brief email exchange, I did provide a quote to OBNA for \$12,000.00 per container, plus additional charges.

3. The drayage services quoted would have been performed by TRT's sister corporation, Orange Avenue Express, Inc. ("OAE") since TRT is not a licensed motor carrier, and OAE is a licensed motor carrier.

4. OBNA did not accept the quote from TRT and as a result TRT (or OAE) did not handle OBNA's containers, and has not provided any drayage services for OBNA.

I declare under penalty of perjury under the laws of the United States that the foregoing is true and correct to the best of my knowledge.

Dated: October 27, 2022


Alex Corés

CERTIFICATE OF SERVICE

I hereby certify that on October 27, 2022, the foregoing Declaration of Alex Cortes has been served upon all interested persons and parties by electronic means pursuant to the below list.

Executed in Los Angeles County California, October 27, 2022.

**Stephen M
Uthoff**

Digitally signed by Stephen
M Uthoff
Date: 2022.10.27 10:16:25
-07'00'

Stephen M. Uthoff

Counsel for Respondents Hapag-Lloyd, A.G., and Hapag-Lloyd (America) LLC

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